

ומשה: (שמות י"ט:ג') מתן תורה which discusses the words of מדרש in There's a beautiful מדרש in ב' פה עמוד ב' מדרש is well known, but its ramifications are not: at the time that משה went up on סיני, to the higher spheres; רבונו של עולם: אָמְרוּ מַלְאֲכֵי הַשָּׁרָת לִפְנֵי הַקָּדוֹשׁ בְּרוּךְ הוּא: What is a human being doing here amongst us, the celestial beings, beings of perfection? (A ילוד אִשָּׁה represents a person with all of his חסרונות, his יצר הטוב and יצר הרע, and all of his various defects). אָמַר לָהֶן - Hakodosh Baruch Hu answered the מלאכים; מלאכים - he came to receive the Torah; אָמְרוּ לִפְנֵי - they said, "The Torah, which was established for 974 generations before העולם: We disagree; leave the Torah here. We want it to remain with us." אָמַר לוֹ - Hashem told Moshe "You answer them." משה רבינו responded with a puzzling reply: אָמַר לִפְנֵי: רבונו של עולם, מְתִירָא אֲנִי שְׂמָא יִשְׂרָפּוּנִי בְּהֶבֶל שְׂבָפִיהֶם: I'm afraid to answer the מלאכים, I'm afraid they'll burn me up with the with their הבל, with the breath from mouths. אָחִיז: Hashem told him, "Hold on to the כסא הכבוד and answer them." Like a סגולה, a token, a trinket, a talisman - hold on, and respond. משה רבינו proceeded to say to them: "The Torah says we were in מצרים. Were you in מצרים? It says ואת אביך ואת אמך. Do you have parents?" And he went through all the מצוות of the תורה which are clearly only שייך to בשר ודם. With this, he was able to defeat them.

The sefer גמרא doesn't specify what their argument was; it just says they didn't want to give the Torah to human beings. All the מפרשים discuss this. It's difficult to understand their claim, because the Torah was clearly designed for people. What was טענה מלאכים'?

The טענה מלאכים' was a simple one. There were two options here. There was an option to leave the Torah with the מלאכים who would only be מקיים those parts of the Torah that they are able to, but they would do so perfectly, or it could be given to people, who would fulfill it to the best of their imperfect abilities. No person can keep the entire Torah. And we know that we often fail in fulfilling the מצוות of both תורה and שבכתב. A person's נטיה is to do עבירות and not to keep the Torah. So when הקדוש ברוך הוא said to Moshe תשובה - give them an answer, the word תשובה not only means give them an answer, but give the מלאכים the תירוץ that we can utilize תשובה to defeat the מלאכים in their טענה. The ability to do תשובה allows us to be מכפר on all of our עבירות, and a person can be considered as if he kept the Torah with perfection. But משה רבינו said, "No, I can't do that, אָמַר יִשְׂרָפּוּנִי בְּהֶבֶל שְׂבָפִיהֶם, which means what? מלאכים are on a higher מדרגה. They don't have any עבירות. That is the שכינה, their complete רוחניות and spirituality is their perfection. גדולה תשובה שְׂמָנָעַת: מסכת יומא פ"ו ע"א, as it says in ע"א, אָחִיז בְּכֶסֶד כְּבוֹדִי, the הקדוש ברוך הוא answered him, מלאכים are on a higher מדרגה than those who don't have any עבירות e.g. עַד כֶּסֶד הַכְּבוֹד.

Rabbi Oelbaum recently discussed this point and made an interesting comment. He said הקדוש ברוך הוא is in שמים surrounded by מלאכים, but there's a little space between הקדוש ברוך הוא and the מלאכים. That little space, right next to the הכבוד, is off-limits to the מלאכים. Who can go there? A human being has the ability if he works hard enough.

This answers most of our questions, but there's only one problem. The מלאכים did not agree with this טענה, with this argument that בעלי תשובה are on a higher מדרגה. In their view, any person who has done an עבירה cannot possibly be on the same level as someone who's spotless, who's flawless, whose record is clean as a whistle, had no עבירות at all. משה didn't have a real answer to this, until we come to the pasuk that gives us the final answer. We have beings that have never sinned. Their record is spotless. Who are they? תשובה, the little קינדערלאך. All of our little קינדערלאך, each and every one of them, are on a higher מדרגה, because they are חטא. So we have both: we have the concept of תשובה, and we also have the חטא שאין בו חטא, we have those קינדערלאך who are giving us the ability to accept the Torah, as it says in the pasuk, (תהילים ח"ג), מִפִּי עוֹלָלִים וְיִנְקִים יִסְדֶּתָּ עוֹ (זכות of those little



קינדערלאך that were able to get the Torah, not in the זכות of the אבות, not in the זכות of our מצוות, not in the זכות of our Torah or even of our גמילות חסדים. It was in the זכות of the תינוקות של בית רבן. All of our הר סיני at תורה - they should all live and be well and געזונט - are what gave us the ability to get the תורה and for דורות.

